

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #13	CCRB Case #: 201508852	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/16/2015 1:55 AM	Location of Incident: In front of § 87(2)(b)	Precinct: 46	18 Mo. SOL 4/16/2017	EO SOL 4/16/2017	
Date/Time CV Reported Sat, 10/17/2015 5:09 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 10/17/2015 5:09 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Nicholas Kourounis	28949	954029	046 PCT		
2. SGT Laura Barbato	270	944350	046 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Johnny Chalen	09575	947694	046 PCT		
Officer(s)	Allegation		Investigator Recommendation		
A.POM Nicholas Kourounis	Discourtesy: PO Nicholas Kourounis spoke discourteously to § 87(2)(b)				
§ 87(4-b), § 87(2)(g)					

Case Summary

On October 17, 2015, § 87(2)(b) filed this complaint with the CCRB via the On-line website.

On October 16, 2015, at approximately 1:55 a.m., § 87(2)(b)'s brother, § 87(2)(b) was sitting on the steps outside of their apartment building, which is located at § 87(2)(b) in the Bronx. PO Johnny Chalen, PO Nicholas Kourounis, and Sgt. Laura Barbato from the 46th Precinct all approached § 87(2)(b) as a sign was posted prohibiting sitting in that area, and the officers also believed § 87(2)(b) was drinking a beer (it was later discovered to be a can of lemonade). During the officers' conversation with § 87(2)(b) he spat on the walkway in front of the building, prompting PO Chalen to ask for his ID to issue him a summons for spitting on a public sidewalk. While PO Chalen prepared the summons, § 87(2)(b) exited the building and began recording all three officers on his cell phone. PO Chalen issued § 87(2)(b) a summons for § 87(2)(b) and then all three officers walked back to their vehicle. As the officers were preparing to leave, PO Kourounis shouted "Fuck you" at § 87(2)(b) (Allegation A), and then the officers drove away without further incident.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A notice of claim request was submitted to the Comptroller's office on December 7, 2015. It will be added to the case file upon its receipt.

Civilian and Officer CCRB Histories

- § 87(2)(b) has an extensive CCRB history, § 87(2)(b)
- PO Nicholas Kourounis has been a member of service for two years. There are two prior discourtesy allegations on his record, both of which are still under investigation. There are no substantiated allegations against him.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) stated that the officer who spoke discourteously to him was a white male officer who was also the driver of the officers' vehicle. PO Kourounis was the only white male officer involved in the incident, and he also was the driver of the officers' vehicle. § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g) PO Chalen (01 Board Review) and PO Kourounis (02 Board Review) stated that they approached § 87(2)(b) because they believed he was drinking a beer, and subsequently stopped him after observing him spit on the walkway in front of the building. Sgt. Barbato stated that the officers approached § 87(2)(b) because he was sitting in front of the building entrance, and a sign was posted on the wall prohibiting sitting in that area (03 Board Review). § 87(2)(g)

§ 87(2)(b) stated that his brother was drinking a can of lemonade, which could be feasibly mistaken for a beer can (04 Board Review), and Sgt. Barbato can be heard on the video provided by § 87(2)(b) pointing to a sign on the wall and reading to

§ 87(2)(b) that sitting was prohibited in that area (05 Board Review). Moreover, as

§ 87(2)(b) was uncooperative with the investigation, § 87(2)(g)



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§ 87(2)(g)

§ 87(2)(g)

Allegation A: Discourtesy – PO Nicholas Kourounis spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged in his CCRB statement that after the officers issued § 87(2)(b) the summons and returned to their vehicle, PO Kourounis yelled, “Get a life,” at § 87(2)(b). § 87(2)(b) replied by yelling “Get a life” back at PO Kourounis, to which PO Kourounis allegedly stated, “Fuck you.” § 87(2)(b) identified PO Kourounis as the officer.

§ 87(2)(b) also made this allegation in a phone statement given prior to his CCRB interview, albeit in an unsure manner. In this statement, he originally stated PO Kourounis “made some comments which I couldn’t hear real good. It sounded like one of the officers said something about ‘Get a life’ or ‘Get a job’ or some other type of language like ‘F you’ or something as they were leaving” (07 Board Review). When asked if he actually heard the officers say “Fuck you” during the incident, § 87(2)(b) initially avoided answering the question. He only affirmed that he did in fact hear the officer make this statement after being asked about it three times.

In the video footage § 87(2)(b) provided of the incident, someone can be heard yelling from a distance after the officers have returned to their vehicle. The actual statement made is difficult to hear clearly, but § 87(2)(b) can be heard yelling back, “Get a job.” The statement made in response to § 87(2)(b) sounds like it could possibly be “Fuck you,” but the audio is not clear enough to definitively say whether that is in fact the statement that was made at that time.



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PO Kourounis denied saying “Fuck you” or using any profanity whatsoever during the incident towards § 87(2)(b). Sgt. Barbato denied hearing PO Kourounis make this statement, and PO Chalen did not recall hearing PO Kourounis making the alleged statement. Upon being showed the video clip corresponding to this portion of the incident, all three officers maintained their original accounts of denying or not recalling the allegation.

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Squad: 13

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date